

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MOHAWK GLOBAL LOGISTICS CORP. DBA MOHAWK
GLOBAL LOGISTICS, *Complainant*

v.

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC. AS
AGENT FOR MEDITERRANEAN SHIPPING COMPANY, S.A.
GENEVA, *Respondent*.

DOCKET NO. 1971(F)

Served: November 9, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

PROCEDURAL ORDER

On August 4, 2021, a claim was received wherein Claimant Mohawk Global Logistics Corp. alleged violations of the Shipping Act by MSC Mediterranean Shipping Co. (USA) Inc. ("MSC USA") as agent for Mediterranean Shipping Co, S.A. ("MSC"). On September 3, 2021, Respondent filed its response which indicated, in part, that MSC "is not a respondent in this proceeding and submission of this Response shall not be construed as an admission by MSC that it is a respondent." Response at 1 n.1.

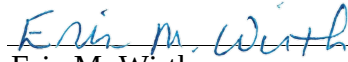
On September 23, 2021, Claimant, which is representing itself, filed a response ("Reply") asserting that the argument regarding whether MSC should be served as a respondent "can be easily remedied by filing an amended complaint" and is only "semantics regarding which entity accepts process of service." Reply at 5-6.

The parties were instructed to file a joint status report indicating whether they would engage in mediation, if any discovery was requested, and if any additional filings were required. On October 12, 2021, the parties filed their joint status report which only stated that they did not agree to engage in mediation.

Ensuring proper service is fundamental to due process. Accordingly, Claimant will be provided time to file an amended complaint which adds MSC as a respondent in this proceeding. The amended complaint should be filed with the Office of the Secretary. If the Claimant would like to incorporate the Memorandum from Claimant and Exhibits that were attached to the initial complaint, it should so state. If the only change made is to add MSC as a party, then Claimant does not need to file a motion requesting leave to file the amended complaint. If Claimant changes the claim in any other way, it should file a motion requesting leave to file the amended complaint which explains what was changed and why. The amended complaint should be filed by November 19, 2021.

It is noted that MSC USA's response indicates which sections of their argument are asserted on behalf of MSC "in the event that MSC is determined to be a respondent." Response at 1 n.1. When MSC responds to the amended complaint, it should indicate if any additional discovery or briefing is requested.

It is hereby **ORDERED** that Claimant file its amended complaint by November 19, 2021, and that MSC indicate in its response if any additional discovery or briefing is requested.



Erin M. Wirth

Chief Administrative Law Judge